



CHAPTER lxxxv.

An Act to confer further powers upon the London and South Western Railway Company to authorise them to execute further works to acquire additional lands to empower that Company and the Midland Railway Company or one of them to acquire additional lands in respect of an undertaking in which they are jointly interested for amalgamating the Waterloo and City Railway Company and the Axminster and Lyme Regis Light Railway Company with the London and South Western Railway Company and for other purposes.

A.D. 1906.

[20th July 1906.]

WHEREAS it is expedient that the London and South Western Railway Company (in this Act called "the Company") be authorised to make and maintain the railways widenings and other works and to exercise the other powers in this Act expressed and contained in reference to closing diverting or altering footpaths and extinguishing rights of way over such footpaths in cases where they cross or heretofore crossed the railways belonging to the Company and to acquire for the improvement of their railways and for the general purposes of their undertaking certain lands houses and buildings in this Act described or referred to :

And whereas it is expedient that the Company and the Midland Railway Company (in this Act called "the Two Companies") or one of them be empowered to acquire the lands in this Act mentioned or referred to in that behalf :

And whereas it is expedient that the purchase by the Company and by the Company jointly with the London Brighton and South Coast Railway Company (in this Act called "the Joint Companies") of certain lands already acquired by them

A.D. 1906. respectively and the expenditure by the Company and Joint Companies respectively of money in relation thereto be sanctioned and confirmed :

And whereas it is expedient that the period within which the Company the Somerset and Dorset Railway Company (in this Act called "the Somerset Company") the Two Companies and the Joint Companies may respectively hold sell and dispose of superfluous lands be extended :

And whereas the Company hold lands and property adjoining and near to their railways and works which are not immediately required for the purposes of their undertaking but which will or may in the future be so required and it is expedient that the powers to the effect hereinafter set forth should be conferred upon the Company of leasing or otherwise dealing temporarily with such lands and property :

And whereas the respective undertakings of the Waterloo and City Railway Company (in this Act called "the City Company") and the Axminster and Lyme Regis Light Railway Company (in this Act called "the Lyme Regis Company") are worked by the Company and it is expedient that the City Company and the Lyme Regis Company should be amalgamated with the Company as provided by this Act :

And whereas the Second Schedule to this Act contains a statement of the authorised capital of the City Company and of the Lyme Regis Company and the amount which has been issued and paid up of such capital respectively and the Company are the holders of the whole of the debenture stock issued by those companies and of the whole of the preference stock issued by the Lyme Regis Company and twenty-five thousand two hundred and forty pounds of the ordinary stock of that company :

And whereas it is expedient that the mayor aldermen and burgesses of the county borough of Southampton (in this Act called "the Southampton Corporation") should be authorised to contribute towards the cost of the Northam Road Bridge reconstruction by this Act authorised and for that purpose should be authorised to borrow as hereinafter provided :

And whereas it is expedient that the Company should be authorised to raise further capital and to apply their funds for the purposes of this Act and for the general purposes of their undertaking :

And whereas it is expedient that the Midland Railway Company should be empowered to apply their funds as provided by this Act :

And whereas plans and sections showing the lines and levels of the railways and other works by this Act authorised to be constructed and plans showing the lands by this Act authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerks of the peace for the several counties within which such railways and other works will be constructed and such lands are situated and are hereinafter respectively referred to as the deposited plans sections and books of reference : A.D. 1906.

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the South Western Railway Act 1906. Short title.

2. The following Acts and parts of Act are except where expressly varied by this Act incorporated with and form part of this Act (that is to say) :— Incorporation of Acts.

The Lands Clauses Acts :

The Railways Clauses Consolidation Act 1845 :

Part I. (relating to the construction of a railway) and
Part V. (relating to amalgamation) of the Railways Clauses Act 1863 :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money ;

65 The conversion of the borrowed money into capital ;

A.D. 1906.

The consolidation of the shares into stock ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression " the railway " or " the railways " means the new railways by this Act authorised.

Interpreta-
tion of terms
" parish
clerks " &c.

4. The expressions " parish clerks " and " clerks of the several parishes " in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

Protection
of gas and
water mains
of local au-
thorities.

5. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if " local authority " were mentioned in those sections in addition to " company " or " society " Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to
make new
railways and
works.

6. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections relating thereto the railways widenings and other works hereinafter described with all proper stations sidings approaches roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes The railways widenings and works hereinbefore referred to and authorised by this Act are—

NEW RAILWAYS.

(HAMPTON COURT JUNCTION.)

- (A) A Railway (No. 1) 6 furlongs 4·10 chains in length wholly in the parish of Thames Ditton in the urban district of Esher and the Dittons in the county of Surrey

commencing by a junction with the up line of the Surbiton and Guildford Railway of the Company at the boundary between the enclosures numbered 357 and 379 on the $\frac{1}{2500}$ Ordnance map (1896 2nd edition) for that parish and terminating by a junction with the main line of the Company at a point 0·5 chain or thereabouts measured along that railway eastward of the bridge carrying that railway over Manor Road:

- (B) A Railway (No. 2) 1 mile 2 furlongs 4·53 chains in length wholly in the county of Surrey commencing in the parish of Thames Ditton in the urban district of Esher and the Dittons by a junction with the Hampton Court Railway of the Company at a point 6 chains or thereabouts measured along that railway in a north-westerly direction from the bridge carrying that railway over the Portsmouth road and terminating in the parish and urban district of Surbiton by a junction with the main line of the Company at a point 7 chains or thereabouts measured in a south-westerly direction along the main line from the south-west side of the bridge carrying that railway over the Brighton road:

(REDBRIDGE CURVE.)

- (c) A Railway (No. 4) 2 furlongs 0·55 chain in length wholly in the county of Southampton commencing in the parish of Eling in the rural district of New Forest by a junction with the Southampton and Dorchester railway of the Company at a point 7 chains or thereabouts measured along that railway from the western end of the railway viaduct over the River Test and terminating in the parish of Millbrook in the rural district of South Stoneham by a junction with the Andover and Redbridge railway of the Company at the southern side of the public road known as The Causeway where that railway crosses it on the level:

WIDENINGS.

- (D) A Widening (No. 1) wholly in the county of Devon of the Exmouth Railway of the Company on the eastern side thereof commencing in the parish of Withycombe Raleigh in the urban district of Exmouth at a point

A.D. 1906.
—

9 chains or thereabouts measured along that railway in a northerly direction from the signal box at Exmouth Station and terminating in the parish of Topsham in the rural district of Saint Thomas at a point measured along that railway 17 chains or thereabouts in a southeasterly direction from the signal box at Topsham Station :

- (E) A Widening (No. 2) wholly in the county of Devon of the Exmouth Railway of the Company on the eastern side thereof commencing in the parish of Topsham in the rural district of Saint Thomas at a point 5 chains or thereabouts measured along that railway in a north-westerly direction from the said signal box at Topsham Station and terminating in the parish and urban district of Heavitree at a point 2 chains or thereabouts measured in an easterly direction along that railway from the signal box at Exmouth Junction :
- (F) A Widening (No. 3) wholly in the county of Devon of the North Devon Railway of the Company commencing in the parish of Chittlehampton in the rural district of South Molton at a point near the southern end of the down platform at Umberleigh Station and terminating in the parish of Down Saint Mary in the rural district of Crediton at a point 10 chains or thereabouts measured along that railway in a northerly direction from the signal box at the Copplestone Station of the Company :
- (G) A Widening (No. 4) wholly in the parish of Saint Mary Lambeth in the metropolitan borough of Lambeth in the county of London of the Company's railway on the western side thereof commencing at a point 0·5 chain or thereabouts from the south side of Upper Marsh and terminating at a point 1 chain or thereabouts north of the northern side of Upper Marsh :
- (H) A Widening (No. 5) wholly in the parish of Saint Mary in the county borough of Southampton in the county of Southampton on the eastern side of the Company's railway to Southampton commencing at a point 2·5 chains or thereabouts south of the bridge carrying Northam Road over the railways of the Company and terminating at a point 1 chain or thereabouts north of the said bridge.

7. Subject to the provisions in the Railways Clauses Con-
solidation Act 1845 and in Part I. (relating to the construction
of a railway) of the Railways Clauses Act 1863 contained in
reference to the crossing of roads on the level the Company
may in the construction of the works next hereinafter mentioned
carry the same on the level of the roads next hereinafter
mentioned (that is to say):—

A.D. 1906.
Power to
cross certain
roads on
level.

Works.	Number on deposited Plans.	Parish.	Description of Road.
Widening No. 3 -	4	Chittlehampton - -	Public.
	23	Burrington - -	"
	29	" - -	"
	28	Chawleigh - -	"
	34	" - -	"

8. In altering for the purposes of this Act the roads next
hereinafter mentioned the Company may make the same of any
inclinations not steeper than the inclinations hereinafter mentioned
in connection therewith respectively (that is to say):—

Inclination
of roads.

Work.	Number on deposited Plans.	Parish.	Description of Road.	Intended Inclination.
Northam Road Bridge recon- struction.	2	Saint Mary Southampton -	Public -	1 in 26.
	5	" "	" -	1 in 20.

9. The Company may make the arches of the bridges for
carrying the railways and the widenings over the roads next
hereinafter mentioned of any heights and spans not less than the
heights and spans hereinafter mentioned in connection therewith
respectively (that is to say):—

Height and
span of
bridges.

Work.	Number on deposited Plans.	Parish.	Description of Road.	Height.	Span.
Railway No. 1 -	28	Thames Ditton -	Public -	ft. in. 13 8	ft. in. 30 0
" " 2 -	4	" "	" -	16 0	45 0
	7	" "	" -	15 0	30 0
	13	" "	" -	15 0	30 0
	3	Long Ditton -	" -	14 8	30 0
	5	" " -	" -	15 0	30 0
	8	" " -	" -	14 8	30 5

A.D. 1906.
—

Work.	Number on deposited Plans.	Parish.	Description of Road.	Height.		Span.	
				ft.	in.	ft.	in.
Widening No. 1	7	Lympstone - -	Public -	14	6	20	3
	10	" - -	" -	15	0	20	0
	13	" - -	" -	15	6	30	3
" " 2	1A	Topsham - -	" -	14	10	25	0
	5	" - -	" -	15	0	20	0
	1	Heavitree - -					
	5	" - -	" -	19	0	25	0
	2	Sowton - -					
	6	" - -	" -	16	0	30	0
	5A	Heavitree - -					
	10	" - -	" -	14	0	14	10
" " 4	11	" - -	" -	18	3	30	1
	10	} Saint Mary Lambeth	" -	17	6	45	0
	11						

Width of
roadways
over bridges.

10. The Company may make the roadway over the bridges by which the following roads will be carried over the railways and the widenings hereinafter mentioned of such width between the fences thereof as the Company think fit not being less than the respective widths hereinafter mentioned in connection therewith respectively (that is to say) :—

Work.	Number on deposited Plans.	Parish.	Description of Roadway.	Width of Roadway.	
				ft.	in.
Widening No. 1 -	6	Topsham - - -	Public	19	10
" " 2 -	2	Heavitree - - -	" -	12	1
	6	" - - -	" -	15	4
" " 3 -	6	Chittlehamholt - -	" -	14	9
	7	Chulmleigh - -	" -	20	0
	15	" - - -	" -	20	0
	27	" - - -	" -	15	0
	5	Nymet Rowland - -	" -	14	10
	14	Lapford - - -	" -	20	5
	17	" - - -	" -	15	4
	24	" - - -	" -	15	0
	9	Down Saint Mary - -	" -	15	6
" " 5 -	2	Saint Mary Southampton -	" -	40	0

Power to
divert roads
as shown on
deposited
plans.

11. The Company may divert the roads referred to in the next following table in the manner shown upon the deposited plans and sections and subject to the provisions of this Act may stop up and cause to be discontinued as a road so much

of each existing road as will be rendered unnecessary by the new A.D. 1906.
portion of road so shown on the said plans (that is to say):—

Work.	Parish.	No. of Road on deposited Plans.
Widening No. 3 - -	Chittlehampton - -	4
	High Bickington - -	7
	Chawleigh - -	10
	Morchard Bishop - -	12

12. Where this Act authorises the diversion of a road or footpath and the stopping up of an existing road or footpath or portion thereof such stopping up shall not take place until two justices shall have certified that the new road or footpath has been completed to their satisfaction and is open for public use Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing road or footpath is situate seven days' notice in writing of their intention to apply for the same As from the date of the said certificate all rights of way over or along the existing road or footpath or portion thereof shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

13. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (in this section called "the council") (that is to say):—

- (1) The London Building Acts 1894 to 1905 and any Act amending the same and any byelaws and regulations in force thereunder shall (subject to any special exemptions in favour of railway companies therein contained) apply to the execution of any works by the Company on any lands in the administrative county of London (in this section called "the county") acquired or held under the provisions of this Act:

A.D. 1906.
—

- (2) It shall not be lawful for the Company to encroach upon any part of the surface of any street or footway in the county or without the consent of the council to erect or maintain any building or structure beyond the general line of buildings in any street part of a street place or row of houses in the county :
- (3) The Company shall not where any house or building in the county shall have been wholly or in part demolished by them leave any adjoining structures or any portion of a partly demolished structure in an unsightly condition for a longer period than is reasonably necessary :
- (4) The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the works authorised by this Act or upon any building or hoarding and whether during or after the construction of the works within view of any public street in the county any placards or advertisements except such as relate to the business of the Company and if any such placard or advertisement be affixed or exhibited except as aforesaid the council and their authorised officers may remove the same but this provision shall not prevent the Company from exhibiting on the outside of any station placards giving information to the public as to the traffic of the Company :
- (5) If the Company acquire the lands and houses numbered 14 on the deposited plans in the parish of Saint Mary Lambeth and shall pull down the same they shall forthwith give notice thereof to the council and they shall if required by the council within two months from the receipt of such notice set back the building line in York Road according to the red line shown on a plan signed by Andrew Young on behalf of the council and Sam Bircham on behalf of the Company and any lands which shall be on the side of such red line next the road shall belong to the council and shall be paid for by them in such sum as may be agreed or failing agreement as may be determined by an arbitrator to be agreed upon or failing agreement to be appointed by the President of the Institute of Surveyors and the road so widened shall be made up maintained cleansed and lighted

by the council of the metropolitan borough of A.D. 1906.
Lambeth: —

- (6) Notwithstanding anything in this Act or on the deposited plans and sections the construction of a new bridge or the extension and alteration of the existing bridge carrying the Company's railway over Upper Marsh shall be so carried out as not to lessen the present clear width of Upper Marsh including the footways thereof and so that the underside of the girders shall not be lower than the level of the underside of the existing arch at the crown on the western side of the railway and so as to give a clear span throughout of not less than forty feet measured on the square:

The said construction or extension and alteration shall be carried out according to plans to be submitted to and approved by the council:

The Company shall in constructing or extending and altering such bridge face the abutments thereof with white glazed bricks and shall at all times keep the surface of such bricks clean and in good repair to the satisfaction of the council of the metropolitan borough of Lambeth:

The new or extended and altered bridge shall be of a reasonably ornamental character and design and shall so far as is reasonably practicable be made and maintained so as to prevent the dripping of water therefrom on any part of any street road area or forecourt and so as to deaden the sound of engines carriages and traffic passing over such bridge and the parapets of such bridge shall be carried up to a height not less than six feet above rail level to hide from view of the street or road trains passing over such bridge:

The Company shall not execute or commence the construction or extension and alteration of any such bridge or works as aforesaid until they shall have given to the council twenty-eight days' notice in writing of their intention to commence the same by leaving such notice at the offices of the council with plans elevations sections and other necessary particulars of the construction or extension and alteration of the said bridge and works and until the

A.D. 1906.

council shall have signified their approval of the same unless the council fail to signify such approval or their disapproval or other directions within twenty-eight days after service of the said notice and delivery of the said plans elevations sections and other particulars as aforesaid and the Company shall comply with and conform to all reasonable directions and regulations of the council in the execution and subsequent maintenance of such bridge and the works connected therewith and shall save harmless the council against all and every expense to be occasioned thereby and all such works shall be done to the reasonable satisfaction of the engineer or other officer of the council at the costs charges and expenses in all respects of the Company and all costs charges and expenses which the council may be put to by reason of the works of the Company whether in the execution of the works the preparation or examination of plans and designs superintendence or otherwise shall be paid to the council by the Company on demand.

For protection of Southampton Gas Light and Coke Company.

14. The following provisions for the protection of the Southampton Gas Light and Coke Company (in this section referred to as "the gas company") shall apply and have effect:—

- (1) Sections 18 19 21 and 23 inclusive of the Railways Clauses Consolidation Act 1845 shall with respect to any mains pipes apparatus and other works belonging to the gas company which may be affected by the Northam Road Bridge reconstruction referred to in the section of this Act the marginal note of which is "Bridge works &c." and in the agreement with the Southampton Corporation scheduled to this Act (which work is hereinafter referred to as "the Northam Bridge reconstruction") shall extend and apply to the Northam Bridge reconstruction as if the same were a construction of a railway within the meaning of the said sections:
- (2) The Company shall provide vertical space under the footpaths of the Northam Road Bridge for any mains or pipes to an extent not exceeding seven inches Provided that where it is inconvenient to lay down under the footpaths of the said bridge any mains or pipes which the gas company may require the gas company shall be entitled to lay such mains or pipes

outside the said bridge on the northern side thereof and the Company shall afford all reasonable facilities for the purpose : A.D. 1906.

- (3) Subject to the provisions of this Act nothing shall take away lessen or affect the rights of the gas company to lay any main pipe or apparatus of the gas company on the Northam Road Bridge when reconstructed and the approaches thereto :
- (4) During the reconstruction of the Northam Road Bridge the Company shall provide to the reasonable satisfaction of the engineer of the gas company good and sufficient support for the existing mains pipes and apparatus of the gas company or for such temporary substitutes for the said existing mains pipes and apparatus as may in the opinion of the engineer to the gas company be deemed necessary and the Company shall bear all the costs charges and expenses of the gas company consequent on the provision of the said temporary substitutes and otherwise in connection with the said mains pipes and other apparatus arising out of or caused by the reconstruction and final completion of the Northam Road Bridge and its approaches.

15. For the protection of the urban district council of Esher and the Dittons (in this section called "the council") the following provisions shall have effect unless otherwise agreed between the Company and the council (that is to say):—

For protection of urban district council of Esher and the Dittons.

- (1) All bridges constructed under the powers of this Act in connection with Railways Nos. 1 and 2 over any street or road shall so far as is reasonably practicable be made and maintained so as to prevent the dripping of water therefrom :
- (2) The Company may carry the footpath which crosses Railway No. 1 on the level in the field numbered 4 on the deposited plans for the parish of Thames Ditton and the continuation thereof which crosses the Company's new Guildford line and also the footpath over the said new Guildford line situate at the commencement of Railway No. 1 by three footbridges and upon the completion thereof may stop up and discontinue for traffic of every description so much of each of the said footpaths as lies between the fences of the Company's railways.

A.D. 1906.

For protec-
tion of Sur-
rey County
Council.

16. For the protection of the Surrey County Council (in this section called "the council") the following provisions shall have effect unless otherwise agreed between the Company and the council:—

Before Railway No. 1 shall be opened for public traffic the Company shall construct a screen between that railway and the Portsmouth road from the eastern end of the cottage No. 13 on the deposited plans in the parish of Thames Ditton to the eastern boundary of orchard No. 13A on the deposited plans in the same parish such screen to be constructed of brick for a height of seven feet above the level of the Portsmouth road and of timber for a height of four feet on the top of the brickwork so as to make a screen of eleven feet in height throughout between the said points The said screen shall be constructed and thereafter maintained by and at the expense of the Company to the reasonable satisfaction in all respects of the surveyor to the council The Company shall not permit any advertisements to be placed on the screen facing the Portsmouth road In the event of buildings being erected on the land between the points hereinbefore mentioned of a not less height than eleven feet such buildings shall be accepted and be in substitution for so much of the screen as is rendered unnecessary thereby.

Period for
completion
of railways.

17. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Tolls &c.

18. For the purpose of demanding and recovering tolls rates and charges and for all other purposes the railways and widenings of the Company's railways by this Act authorised shall respectively be deemed part of the Company's main line of railway.

Imposing
penalty un-
less railways
opened.

19. If the Company fail within the period limited by this Act to complete the railways the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railways are completed and opened for the public conveyance of passengers or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the works and the said penalty may

be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 and every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the supreme court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company was prevented from completing or opening such line by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

A.D. 1906.

20. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Application
of penalty.

A.D. 1906.

Works below
high-water
mark not to
be com-
menced with-
out consent
of Board of
Trade.

21. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and re-flows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Bridge
works &c.

22. Subject to the provisions of this Act the Company may make and execute in the lines and according to the levels shown upon the deposited plans and sections relating thereto the bridge works and the footbridge extension and divert a portion of the footpath in connection with the said footbridge extension as hereinafter mentioned and described (that is to say):—

NORTHAM ROAD BRIDGE RECONSTRUCTION.

- (A) The reconstruction widening and lengthening of the bridge in the parish of Saint Mary in the county borough of Southampton in the county of Southampton carrying the Northam road over the Company's railways to Southampton and Dorchester respectively:

MARSH LANE FOOTBRIDGE EXTENSION.

- (B) The extension of the footbridge in the parish of Saint Mary in the county borough of Southampton in the county of Southampton at Marsh Lane from its western end for a distance of 3·5 chains or thereabouts in a westerly direction and on the completion of such extension the Company may divert the said Marsh

Lane over the said footbridge and stop up all rights of way over so much of the said diverted lane as is rendered unnecessary by the construction of such footbridge. A.D. 1906.

23. The Company may—

Stopping up
certain level
crossings.

- (A) Stop up and discontinue so much of the public footpath in the parish and borough of Andover in the county of Southampton which crosses or heretofore crossed on the level the Company's main line to Exeter as is on the site or nearly on the site of the footbridge erected by the Company over the said railway between the enclosures numbered 510 and 663 on the $\frac{1}{2500}$ Ordnance map (1896 2nd edition) of the said parish:
- (B) Stop up and discontinue so much of the public footpath which crosses or heretofore crossed on the level the Company's Salisbury and Dorset railway as is on the site or nearly on the site of the footbridge erected by the Company over the said railway at Downton Station in the parish of Downton and rural district of Salisbury in the county of Wilts:
- (C) Stop up and discontinue so much of the public footpath which crosses or heretofore crossed on the level the Company's Richmond branch railway known as "Spur Crossing" as is on the site or nearly on the site of the footbridge erected by the Company over the said railway at or near Spur Lane in the parish of Mortlake in the urban district of Barnes in the county of Surrey:
- (D) Stop up and discontinue so much of the public footpath known as "Church Path" which crosses or heretofore crossed on the level the Company's Richmond branch railway as is on the site or nearly on the site of the footbridge erected by the Company over the said railway at or near the said Church Path in the parish of Mortlake in the urban district of Barnes in the county of Surrey:
- (E) Stop up and discontinue so much of the public footpath as crosses or heretofore crossed on the level the Company's Southampton and Dorchester railway

A.D. 1906.

as is on the site or nearly on the site of the foot-bridge erected by the Company over the said crossing at or near the southern end of the Company's West Moors Station in the parish of West Parley in the rural district of Wimborne and Cranborne in the county of Dorset.

Power to
take addi-
tional lands
for general
purposes.

24. Subject to the provisions of this Act the Company may for widening enlarging extending and improving their railways and stations and siding accommodation and for roads and approaches and for taking and getting ballast and for depositing spoil and for all or any other purposes of their undertaking enter upon take hold and use the whole or any part or parts of the lands and buildings next hereinafter mentioned shown on the deposited plans and described in the deposited books of reference (that is to say):—

In the county of London.

- (A) The houses numbered 127 136 and 139 in Lower Marsh and 71 and 73 York Road in the parish of Saint Mary Lambeth in the metropolitan borough of Lambeth:

In the county of Middlesex.

- (B) Land in the parish and urban district of Chiswick on the eastern side of and abutting on the Company's land at Chiswick Station;

and in connection therewith may divert in manner shown on the deposited plans the footpath now crossing the piece of land lastly above described and may stop up so much of the said footpath as is on the said land and as will be rendered unnecessary by the diversion thereof:

In the county of Surrey.

- (c) Land in the parish of New Malden in the urban district of the Maldens and Coombe lying between the Company's Kingston line and the northern side of Wellington Crescent:
- (d) Land in the parish and urban district of Woking at the eastern end of the Company's Woking Station lying between the Company's railway and Oriental Road and known as Woking Lodge:

- (E) Land in the parish of Thames Ditton in the urban district of Esher and the Dittons situate on the southern side of the Company's railway at Esher Station and lying between Esher Station Road and Arch Cottage Road; A.D. 1906.

and in connection therewith may divert in manner shown on the deposited plans the footpath now crossing the piece of land lastly above described and may stop up so much of the footpath as is on the said land and as will be rendered unnecessary by the diversion thereof:

In the county of Dorset.

- (F) Land in the parish of Bradford Abbas in the rural district of Sherborne situate at the eastern end of the Company's Yeovil Junction Station and on the southern side of the Company's Salisbury and Yeovil railway and lying between that railway and the Clifton Maybank branch railway of the Great Western Railway Company:

In the county of Devon.

- (G) Lands in the parish of Okehampton Hamlets in the rural district of Okehampton situate between the first bridge under the Company's railway and the first bridge over the same line and abutting on the north-western side of that railway immediately west of Okehampton Station.

25. Subject to the provisions of this Act the Two Companies or either of them may for widening enlarging extending and improving the Somerset and Dorset Railway (hereinafter called "the Somerset railway") and for station and siding accommodation thereon and for roads and approaches and for taking and getting ballast and for depositing spoil and for other purposes in connection with the said railway enter upon take hold and use the whole or any part or parts of the lands next hereinafter mentioned shown on the deposited plans and described in the deposited books of reference (that is to say):—

Two Companies may purchase additional lands for Somerset and Dorset Railway.

In the county of Somerset.

Land in the parish of Evercreech in the rural district of Shepton Mallet abutting on the western side of the Burnham branch of the Somerset railway and being

A.D. 1906.

parts of the fields or enclosures numbered 693 and 695 on the $\frac{1}{2500}$ Ordnance map (1903 edition) of the parish of Evercreech.

As to private rights of way over lands taken compulsorily.

26. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company or the Two Companies as the case may be shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to common or commonable lands.

27. Notwithstanding anything in this Act contained the Company shall not acquire of the common or commonable lands in the parish of Thames Ditton in the urban district of Esher and the Dittons in the county of Surrey known as Ditton Marsh a greater quantity than two roods and twenty-five perches.

Lands for extraordinary purposes.

28. The Company may by agreement from time to time purchase additional land for any of the extraordinary purposes specified in the Railways Clauses Consolidation Act 1845 connected with their general undertaking not exceeding twenty acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land taken under the powers of this section.

Period for compulsory purchase of lands.

29. The powers of this Act for the compulsory purchase of lands by the Company or by the Two Companies (as the case may be) shall cease after the expiration of three years from the passing of this Act.

Persons under disability may grant easements &c.

30. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or to the Two Companies (as the case may be) any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act to be executed by them respectively in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

31. The purchase by the Company of the lands houses and property hereinafter mentioned is hereby confirmed (that is to say):—

A.D. 1906.
Confirming
purchase of
lands by
Company.

In the county of London.

- (A) The house numbered 3 Bond Street Vauxhall in the parish of Saint Mary Lambeth in the metropolitan borough of Lambeth:
- (B) The houses numbered 79 128 133 134 135 135½ 140 141 and 142 Lower Marsh in the said parish of Saint Mary Lambeth in the metropolitan borough of Lambeth:

In the county of Middlesex.

- (c) Land in the parish of Isleworth in the urban district of Heston and Isleworth situate on the southern side of and abutting on the Company's Windsor railway and numbered 7 on the $\frac{1}{2500}$ Ordnance map (1896 2nd edition) for the said parish:

In the county of Surrey.

- (D) Land at Wrecclesham in the parish and urban district of Farnham abutting on the north-western side of the Company's Farnham and Alton railway and being part of the enclosures numbered 1278 and 1279 on the $\frac{1}{2500}$ Ordnance map (1897 2nd edition) for the said parish:

In the county of Southampton.

- (E) Land and buildings at Forton in the parish of Alverstoke in the urban district of Gosport and Alverstoke known as No. 7 Toronto Place:
- (F) Land and buildings at Northam in the parish of Saint Mary in the county borough of Southampton known as Nos. 67 and 69 Northam Road.

The expenditure of money by the Company in or in connection with the purchase or acquisition of the said lands houses and property or any of them is hereby sanctioned and confirmed And it shall be lawful for the Company to use the same for any of the purposes of their undertaking and the same shall be deemed to be acquired under the powers of this Act.

A.D. 1906.

Confirming
purchase of
lands by
Joint Com-
panies.

32. The purchase by the Joint Companies of the lands houses and property hereinafter mentioned is hereby confirmed (that is to say)—

In the county of Surrey.

Land and buildings at Tooting in the parish of Mitcham in the rural district of Croydon known as Leal Lodge May Villa Conygers Villa and East View and land lying between such houses and the Tooting Merton and Wimbledon railway of the Joint Companies.

The expenditure of money by the Joint Companies in or in connection with the purchase or acquisition of the said lands houses and property or any of them is hereby sanctioned and confirmed And it shall be lawful for the Joint Companies to use the same for any purposes for which they were constituted and the same shall be deemed to be acquired under the powers of this Act.

Extending
time for sale
of certain
superfluous
lands by
Company
Joint Com-
panies Two
Companies
and Somerset
Company.

33. The Company the Joint Companies the Two Companies and the Somerset Company respectively or any of them (in this section referred to as "the respective company") may notwithstanding anything to the contrary in the Lands Clauses Consolidation Act 1845 or in any Act relating to the respective company (whether the Lands Clauses Consolidation Act 1845 be incorporated therewith or not) retain and hold any lands with or without buildings thereon belonging to them which have not yet been applied to the purposes of the respective company or sold or disposed of by them and which are situate near to adjoining or in the vicinity of any railway workshops or station of the respective company and which the respective company may be of opinion that they may require for the purposes of works stations sidings or other conveniences for the period of ten years from the passing of this Act but the respective company shall at the expiration of such period of ten years sell and dispose of all such parts of those lands respectively as shall not then have been applied to or are not then required for the purposes of their undertaking as superfluous lands.

Power to
lease lands
over rail-
ways of
Company.

34.—(1) Without prejudice and in addition to the powers conferred upon the Company by sections 24 25 26 and 27 of the South Western Railway (General) Act 1868 the Company may sell let on lease or otherwise deal with or dispose of any lands lying over any tunnel or covered way or adjoining the same belonging to the Company which it may not in the opinion of the Company

be necessary to retain in their actual possession for the purpose of protecting such tunnel or covered way or for any other of the purposes of the Company's undertaking. Provided always that nothing contained in any lease to be granted under the powers of this section shall prejudicially affect or interfere with the working of the railways of the Company or the accommodation of the traffic thereof and that every such lease shall reserve to the Company either a right of absolute re-entry or of temporary entry and every such conveyance on sale shall reserve to the Company a right of temporary entry upon the premises comprised therein exerciseable in each case after such notice as shall be stipulated for in such lease or conveyance for the purpose of enabling the Company to execute any works which may in their opinion be necessary to be executed for the repair preservation or maintenance of the railway and undertaking of the Company and paying to the lessee or owner for the time being of the premises so entered on such compensation for disturbance and for injury (if any) to the surface of the land or to any building or erection standing thereon which may be occasioned by the execution of any such works as shall in default of agreement be settled by arbitration in manner provided by the Lands Clauses Acts for the settlement of cases for disputed compensation.

A.D. 1906.

(2) The Company may let on lease or otherwise dispose of for any term not exceeding thirty years from the passing of this Act or retain hold and manage during the like period any lands already acquired by them which though not actually in use may in the opinion of the Company be ultimately required for the purposes of their undertaking whether such lands were acquired for the purposes of the existing undertaking of the Company or under the authority of any Act the powers of which may have expired. Provided always that nothing in this section contained shall be deemed to extinguish or interfere with any special rights or privileges which may at any time before the passing of this Act have been reserved to any person or persons either by agreement or by any special Act relating to the Company. Provided also that nothing herein contained shall be deemed to preclude the Company from declaring under its seal at any time during the said period that any portion of the said land has become superfluous land and dealing with the same accordingly. Provided also that at the expiration of the said period such portions (if any) of the said lands as shall not then be required for the purposes of the undertaking shall be sold or dealt with by the Company as superfluous land.

A.D. 1906.

Making
good rates in
Lambeth.

35. If and while the Company are possessed under this Act of any lands in the parish of Saint Mary Lambeth assessed or liable to be assessed in that parish to any sewers rate main drainage rate lighting rate or general purposes rate they shall from time to time until the works for the purposes for which the Company may have acquired such lands are completed and assessed or liable to be assessed in that parish to the respective rates be liable to make good the deficiency in the assessment for the respective rates by reason of those lands being taken or used for the purposes of the said works and the deficiency shall be computed according to the rental at which those lands with any buildings thereon are now rated and on demand the Company shall in each case pay the deficiency to the collector of the respective rates.

As to special
constables.

36. Subject to the conditions hereinafter set forth any two justices having jurisdiction in any one of the counties cities or boroughs in which the constables hereinafter mentioned are to act may on the application of the Company appoint all or so many as they think fit of the persons recommended to them for that purpose by the Company to act as special constables upon and within the whole of the railways stations and works belonging or leased to or worked by the Company either solely or jointly with any other company or committee and every or any part thereof respectively and the following provisions shall apply to every appointment so made:—

- (1) Every person so appointed shall make oath or declaration in due form of law before any justice having jurisdiction in any one of the counties cities or boroughs in which such person is to act duly to execute the office of a constable:
- (2) Every person so appointed and having been sworn or having made declaration as aforesaid shall during the continuance of his appointment have all the powers protection and privileges of a constable in respect of the exercise of his duties and may follow and arrest any person who has departed from any of the said railways stations or works after committing therein or thereon any offence for which he might have been arrested while within or upon the said railways stations or works:
- (3) Any two justices assembled and acting together or the Company may dismiss from his office or accept the

resignation of any constable so appointed and there-
upon all powers protections and privileges belonging
to such person by virtue of such appointment shall
wholly cease No person so dismissed or resigning
shall be capable of being re-appointed except with the
consent of the authority by whom he was dismissed:

A.D. 1906.

- (4) The local authorities of any county city or borough shall not be liable for the expense of or be responsible for any acts or defaults of such constables or for anything connected with or consequent upon their appointment and nothing in this Act contained shall restrict or affect the jurisdiction or powers of the respective local authorities of the county city or borough as the case may be or of any police force:
- (5) A constable appointed as aforesaid shall not act as such under the authority of this Act unless he be in uniform or provided with an authority to act as a constable which authority the justice before whom such constable makes oath or declaration as aforesaid is hereby empowered to grant and if the constable be not in uniform he shall show such authority whenever called upon to do so.

37.—(1) The agreement dated the fourteenth day of December one thousand nine hundred and five and made between the Company of the one part and the Southampton Corporation of the other part as set forth in the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto respectively and the same shall and may (unless otherwise agreed in writing) be carried into effect by the respective parties.

Confirming
agreement
with South-
ampton Cor-
poration.

(2) The Southampton Corporation may borrow the sum not exceeding five thousand pounds to be paid by them to the Company in pursuance of the said agreement and the provisions of the Southampton Corporation Tramways Act 1897 relative to the borrowing of money and the repayment thereof so far as the same are applicable in that behalf shall apply with any necessary modifications to the borrowing of money under this section and to the repayment thereof as if such borrowing had been authorised by that Act Provided that the repayment of the money borrowed and the payment of interest thereon shall be charged on the district fund and general district rate of the borough of Southampton and that the period for the repayment of the money

A.D. 1906. borrowed shall be forty years from the date or dates of the borrowing thereof.

Transfer of
City Com-
pany's and
Lyme Regis
Company's
under-
takings.

38. As on and from the first day of January one thousand nine hundred and seven (in this Act called "the date of amalgamation") the respective undertakings of the City Company and the Lyme Regis Company (which companies are hereinafter called "the selling companies") shall be by virtue of and subject to the provisions of this Act transferred to and vested in the Company and from that date the selling companies shall be dissolved except for the purpose of winding up their affairs and all the rights powers privileges and authorities of the selling companies under their Acts (specified in the Third Schedule to this Act) shall be by virtue of this Act transferred to and may be exercised by the Company and those Acts shall be read and have effect as if the Company had been therein named instead of the selling companies respectively. Provided always that none of the provisions of the selling companies' Acts or other instruments having the effect of Acts of Parliament so far as the same or any of them relate to the constitution directors audit or accounts of the selling companies or relating to the raising of money by shares or borrowing shall apply to the Company. Provided also that such amalgamation and vesting in the Company shall not deprive the directors of the selling companies of all or any powers under their said Acts or otherwise which may be necessary or convenient for the winding up and dissolution of the affairs of the selling companies.

Company
liable for
debts of sell-
ing com-
panies.

39. As from the date of amalgamation the Company shall hold the respective undertakings of the selling companies subject to the debts liabilities contracts and engagements of such companies respectively but freed and discharged from all claims and demands whatsoever on the part of the holders of any shares or stocks of the selling companies except as provided by this Act.

Capital of
selling com-
panies held
by Company
cancelled.

40. As from the date of amalgamation the whole of the debenture stocks of and issued by the selling companies the twenty-five thousand pounds preference stock and the twenty-five thousand two hundred and forty pounds ordinary stock of the Lyme Regis Company held respectively by or on behalf of the Company shall be and the same are hereby cancelled.

Holders of
selling com-
panies'
stocks to be

41. As and from the date of amalgamation the several holders of the existing ordinary stocks of the selling companies (other than the stock cancelled as aforesaid) shall in lieu of and

in exchange for the stocks held by them respectively become and be the holders of the stocks and securities of the Company to the amount and in the proportions hereinafter mentioned (namely):—

A.D. 1906.
holders of
Company's
stocks &c.

- (1) Each such holder of existing ordinary stock of the City Company shall in lieu of and in exchange for every one hundred pounds of such stock and so on in proportion for any less amount at his option to be declared in writing on or before the thirty-first day of December one thousand nine hundred and six become and be the holder of either—

(i) Sixty-seven pounds of the ordinary stock of the Company; or

(ii) One hundred and five pounds three and a half per centum preference stock of the Company; or

(iii) One hundred and ten pounds three per centum debenture stock of the Company:

Provided always that the Company shall on or before the first day of December one thousand nine hundred and six send to every holder of existing ordinary stock of the City Company notice of the provisions of this section and if any such holder does not on or before the said thirty-first day of December one thousand nine hundred and six duly give notice in writing to the Company of the way in which he desires to exercise his said option he shall in lieu of and in exchange for every one hundred pounds existing ordinary stock of the City Company held by him and so in proportion for any less amount become and be the holder of one hundred and five pounds three and a half per centum preference stock of the Company:

- (2) Each such holder of existing ordinary stock of the Lyme Regis Company shall in lieu of and in exchange for every one hundred pounds of such stock and so on in proportion for any less amount become and be the holder of one hundred pounds three and a half per centum preference stock of the Company.

42. From and after the date of amalgamation the Company shall calculate the maximum rates chargeable in respect of the railways of the Lyme Regis Company as if those railways had formed part of the undertaking of the Company at the date of

Rates and
charges on
Lyme Regis
Railway.

A.D. 1906. — the passing of the London and South Western (Rates and Charges) Order Confirmation Act 1891 and the maximum rates and charges by that Order authorised as aforesaid shall be and continue applicable to the said railways as if such provisions were set forth and re-enacted by this Act.

Rates and charges on railway of City Company.

43. From and after the date of amalgamation the Company shall calculate the maximum rates chargeable in respect of the railways of the City Company as provided by the Waterloo and City Railway Act 1893 and the maximum rates and charges by that Act authorised as aforesaid shall be and continue applicable to the said railways as if such provisions were set forth and re-enacted by this Act.

Selling companies to receive revenue and pay debts up to date of amalgamation.

44. The selling companies shall be entitled respectively to all their revenues up to the date of amalgamation and except as by this Act otherwise provided the selling companies shall respectively as between themselves and the Company be liable to discharge and pay all their obligations debts and liabilities chargeable to revenue account which shall have accrued up to the date of amalgamation.

Certificates of shares of selling companies to be exchanged.

45. From and after the date of amalgamation every holder of stock of the selling companies in exchange for which any stock or debenture stock of the Company is to be issued under this Act shall upon the delivery of the certificates for the same to the Company be entitled to receive and shall receive instead thereof from the Company certificates of the stock and debenture stock of the Company to which such holder is entitled under the provisions of this Act and the certificates with respect to the stock of the selling companies shall upon such exchange be cancelled.

Trustee shareholders of selling companies to accept substituted stock or cash.

46. Trustees executors and administrators being holders of any stock of the selling companies respectively may and shall accept the stock or debenture stock of the Company to be issued under the provisions of this Act to the several holders of the stock of the selling companies in substitution for such stock and may and shall hold and dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the stock for which such stock or debenture stock of the Company was substituted.

As to fractional parts of a pound of stock.

47. Notwithstanding anything in this Act contained no stockholder of the selling companies shall become entitled under this Act to any fractional part of a pound of stock or debenture stock

of the Company but in every case in which any such person would but for this enactment have become entitled to a fractional part of a pound of such stock or debenture stock the Company may at their option receive from such person such further sum in cash as will make up an even pound or pay to such person in cash the amount of such fractional part. A.D. 1906.

48. Notwithstanding the transfer to and vesting in the Company of the undertakings of the selling companies the clerks officers and servants of those companies respectively shall not be or become clerks officers and servants of the Company but the selling companies shall respectively discharge all obligations which may be due to such clerks officers and servants respectively or any of them. As to officers of selling companies.

49. All unexercised powers of raising money conferred upon the selling companies respectively by any Act of Parliament or other instrument having the effect of an Act of Parliament are subject to the provisions of this Act hereby cancelled. Unexercised capital powers of selling companies repealed.

50.—(1) On and after the date of amalgamation the capital which immediately before such date was the capital of the Company inclusive of debenture stock shall be increased by addition thereto in the manner and to the extent necessary to give effect to the provisions of this Act with respect to the transfer of the respective undertakings of the selling companies. Company may issue additional capital for purposes of and in connection with transfer to them of selling companies.

(2) After that date the Company may create and issue three per centum debenture stock to the nominal amount of eighty thousand pounds in lieu of and in substitution for the debenture stock of the selling companies held by or on behalf of the Company and cancelled under the provisions of this Act.

(3) The Company may after that date when and as deemed fit create and issue new three pounds ten shillings per centum preference stock to a nominal amount not exceeding five thousand pounds and three pounds per centum debenture stock to a nominal amount not exceeding one hundred and eleven thousand six hundred and sixty-six pounds thirteen shillings and fourpence which respective amounts represent the unissued capital of the selling companies as specified in the Second Schedule to this Act.

(4) Any new three pounds ten shillings per centum preference stock issued by the Company under this section shall rank *pari passu* with the other like stock of the Company which may be

A.D. 1906. — issued by the Company under the authority of the section of this Act the marginal note of which is "Power to raise further money for purposes of Act."

(5) Any new three pounds per centum debenture stock issued by the Company under this section shall rank *pari passu* with the debenture stock by this Act authorised to be created and issued in respect of the additional capital by this Act authorised and the provisions of Part III. of the Companies Clauses Act 1863 and section 53 of the South Western Railway Act 1890 shall apply to any debenture stock to be created and issued under the powers of this section.

Saving for
Postmaster
General.

51. Nothing in this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the railways and works comprised in the undertakings of the City Company and the Lyme Regis Company respectively and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertakings for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights aforesaid notwithstanding that the undertakings of the City Company and the Lyme Regis Company respectively are transferred to and vested in or worked by the Company as freely and fully in all respects as he was entitled to do before the passing of this Act.

Midland
Company
may apply
funds.

52. The Midland Company may apply for any of the purposes of this Act relating to them to which capital is properly applicable any moneys which by any previous Act or Acts they are authorised to raise by shares stock debenture stock or borrowing and which are not by the Act or Acts under which they are authorised to be raised made applicable to any special purposes or which being so made applicable are not required for such special purposes.

Power to
Company to
apply funds
to purposes
of Act.

53. The Company may apply to all or any of the purposes of this Act to which capital is properly applicable any moneys from time to time raised by them which by any previous Act or Acts they are authorised to raise by shares debenture stock or borrowing and which are not by the Act or Acts under which they are authorised to be raised made applicable to any special purposes or which being so made applicable are not required for such special purposes.

54. The Company from time to time may for all or any purposes of this Act and for the general purposes of the Company (being purposes to which capital is properly applicable) raise by new shares or new stock (whether ordinary or preferential or both) any amount or amounts of capital not exceeding one million five hundred thousand pounds.

A.D. 1906.
Power to raise further money for purposes of Act.

55. The Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof.

Shares not to be issued until one fifth paid up.

56. One fifth of the amount of a share shall be the greatest amount of a call and three months at the least shall be the interval between successive calls and three fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Calls.

57. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipts in case of persons not sui juris.

58. The provisions of sections 47 to 70 (both inclusive) of the South Western Railway (Additional Powers) Act 1862 with respect to preferential shares and stock and the cancellation of shares and stock and the issue of new shares or stock instead of cancelled shares or stock and with respect to voting for shares or stock and otherwise respecting shares and stock shall extend to this Act with respect to the Company and the shares and stock which by this Act they are authorised to create and issue.

Provisions of Company's Act of 1862 to extend to Company's shares and stock under this Act.

59. The Company may in respect of the additional capital of one million five hundred thousand pounds which they are by this Act authorised to create and issue borrow on mortgage of their undertaking any sum not exceeding in the whole five hundred thousand pounds and of the last mentioned sum they may borrow thirty-three thousand three hundred and thirty-three pounds in respect of every one hundred thousand pounds of the said additional capital of one million five hundred thousand pounds and in respect of the last sum of one hundred thousand pounds to be raised of such additional capital they may borrow thirty-three thousand three hundred and thirty-eight pounds but no part of any such sum shall be borrowed unless and until the portion of

Power to borrow.

A.D. 1906. — additional capital by this Act authorised in respect of which it is to be borrowed is issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such portion of additional capital have been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share in so much of such portion of capital as is to be raised by means of shares has been paid on account of such shares before or at the time of the issue or acceptance thereof or until stock for one half of so much of such portion of capital as is to be raised by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as the said capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Existing mortgages to have priority.

60. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament passed before the passing of this Act and subsisting at the time of the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act Provided that this section does not apply to any mortgage from time to time granted by the Company in accordance with section 21 of the South Western Railway (General) Act 1865 or section 60 of the South Western Railway (General) Act 1867.

Provision as to appointment of receiver repealed.

61. Section 48 of the South Western Railway Act 1902 for appointment of receiver is by this Act repealed but without prejudice to any appointment heretofore made or proceedings now pending under the provisions of that section or any of them.

For appointment of a receiver.

62. The Company's mortgagees may enforce payment of arrears of interest or principal or principal and interest due on

their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less in the whole than ten thousand pounds. A.D. 1906.
—

63. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and section 53 of the South Western Railway Act 1890. Power to
create debenture
stock.

64. The sum of three hundred and thirty-three thousand three hundred and thirty-three pounds which the Company are authorised to borrow by the South Western Railway Certificate 1904 on the conditions mentioned in that certificate may be borrowed by the following instalments (that is to say) Thirty-three thousand three hundred and thirty-three pounds in respect of every one hundred thousand pounds of the capital of one million pounds which the Company are by that certificate authorised to raise but in respect of the last one hundred thousand pounds of such capital the Company may raise thirty-three thousand three hundred and thirty-six pounds and the said certificate shall be read and construed as if the provisions of this section enabling the Company to borrow by instalments formed part thereof. Amendment
of Company's
certificate of
1904.

65. All moneys raised by the Company under this Act whether by shares stock debenture stock or borrowing shall except as by this Act otherwise provided be applied only for purposes to which capital is properly applicable. Application
of moneys.

66. Sections 18 19 and 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to all or any stock of the Company formed or to be formed by consolidation of shares into stock and all or any debenture stock of the Company created or to be created by the Company and interest on any such stock as if such stocks and interest respectively had been expressly named in the said sections. Sections 18
19 and 20 of
Companies
Clauses Con-
solidation
Act 1845
applied to
consolidated
stocks and
debenture
stock.

67. Proceedings for the recovery of any demand made under the authority of this Act or any former Act of the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of
demands.

A.D. 1906.

Interest not
to be paid
out of capi-
tal.

68. No interest or dividend shall be paid out of any share or loan capital which the Company are by this Act or any Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for
future Bills
not to be
paid out of
capital.

69. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision as
to general
Railway
Acts.

70. Nothing in this Act contained shall exempt the Company or the railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Crown
rights.

71. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Costs of Act.

72. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

SCHEDULES referred to in the foregoing Act.

A.D. 1906.

FIRST SCHEDULE.

AGREEMENT WITH THE SOUTHAMPTON CORPORATION.

AGREEMENT made the 14th day of December 1905 between the LONDON AND SOUTH WESTERN RAILWAY COMPANY (hereinafter called "the Company") of the one part and the MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF SOUTHAMPTON (hereinafter called "the corporation") of the other part.

WHEREAS the exigencies of the increasing traffic of the Company over their system necessitate the reconstruction of the bridge carrying the public road across the railway of the Company at Northam in the said county borough and the Company propose to apply in the next session of Parliament for the necessary powers in that behalf:

And whereas the traffic over the said public road has so increased of late years and is still increasing as to render necessary the widening of the said public road:

And whereas the corporation in the month of December 1904 applied for a Provisional Order to authorise extensions of their existing tramways within the said county borough and by such Order (which has been duly made and confirmed by Parliament) the corporation were amongst other things empowered to construct a tramway across the said bridge:

And whereas the Company have subject to the sanction of Parliament agreed to reconstruct the said bridge and the public road and the approaches thereto to a width of 40 feet between the parapets and so as to carry any extension of the tramway of the corporation together with all necessary apparatus for working the same the corporation subject as hereinafter mentioned contributing one-fourth part of the total cost of and in connection with such reconstruction and the works necessitated thereby such one fourth not to exceed £5,000:

Now therefore it is hereby mutually agreed between the Company and the corporation as follows:—

1. The Company shall at their own risk and with all reasonable despatch after the powers referred to in clause 7 hereof have been conferred upon the parties hereto proceed to reconstruct the said bridge and public road and the approaches thereto so as to provide a width of 40 feet in the clear between the parapets as shown by the red lines on the plan signed by Godfrey Knight on behalf of the

A.D. 1906. — Company and by Richard Roope Linthorne on behalf of the corporation and shall with all reasonable despatch complete and open the same for public use to the reasonable satisfaction of the corporation and the Company shall for ever thereafter maintain the structure of the said bridge and approaches and the corporation shall for ever thereafter maintain and light the roadway on either side of the said bridge as well as on the structure thereof and shall maintain the drains and gullies in connection with such roadway.

2. The said bridge and public road and the approaches thereto shall be so constructed as to admit of an electric tramway worked on the overhead system being laid thereon and thereover (subject as hereinafter mentioned) and provision shall be made for the reception and laying down and maintaining altering and renewing under the footpaths on either side of the said bridge and public road of electric power and light and gas and water mains and pipes (hereinafter referred to as "mains and pipes") Provided that the Company shall not be bound to provide vertical space on the structure of the said bridge for the said mains and pipes to a greater extent than seven inches Provided also that where it is inconvenient to lay down under the footpaths on the said bridge such mains or pipes the corporation company or person in whom the power of laying down such mains or pipes may be vested shall be entitled to lay them outside the said bridge on the northern side thereof and the Company shall afford all proper facilities for the purpose Provided also that the corporation shall be permitted to erect poles or standards for carrying the wires conveying the electric current or power or other attachments on the structure of the said bridge at such places and in such manner only as the engineer of the Company shall reasonably approve and under his superintendence and to his reasonable satisfaction.

3. The corporation will pay to the Company by the instalments and in the manner hereinafter provided one-fourth part (not exceeding £5,000) of the total cost of and in connection with the work of reconstructing the said bridge public road and approaches as certified by the Company's engineer such total cost to include all sums of money which have been or may have to be paid by the Company by way of purchase money for property or compensation for damage as well as the expense of carrying out the work and the works necessitated thereby.

4. The sum to be paid by the corporation shall be payable as follows (videlicet) £2,500 shall be paid as soon as the Company's engineer shall certify that one half of the work has been carried out and the remainder shall be paid within one month of the final completion of the work as certified by the Company's engineer provided that such final completion shall so far as regards the roadway on the said bridge and approaches be to the reasonable satisfaction of the corporation.

5. The corporation will permit the Company to divert all traffic now passing over the existing bridge to a temporary bridge during the construction of the new bridge and will give them every facility for so doing and the cost of such temporary bridge shall be deemed to be part of the cost of reconstruction of the permanent bridge. A.D. 1906.

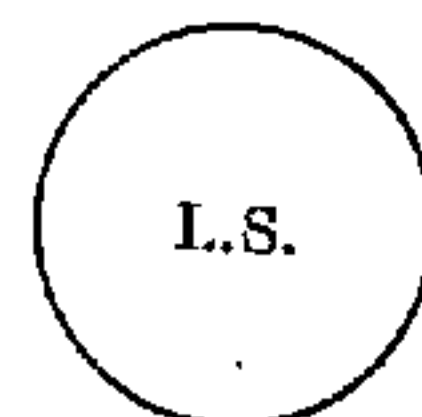
6. In the event of any difference arising between the Company and the corporation under this agreement the same shall be determined by a surveyor or engineer or other fit person to be mutually agreed on or failing agreement by an arbitrator to be appointed on the application of either party by the president for the time being of the Institution of Civil Engineers and this agreement shall be a submission within the meaning of the Arbitration Act 1889 and of any statutory modification or re-enactment thereof for the time being in force.

7. This agreement is subject to confirmation by Parliament and to all necessary powers being conferred on the parties hereto to enable them to carry it into effect (including in the case of the corporation authority to raise the necessary loan) and the Company shall use their best endeavours to obtain the confirmation of this agreement and the conferring of the said powers and this agreement shall be void if such powers are not conferred within two years from the date hereof.

8. This agreement is also subject to such alterations as Parliament may make therein Provided that if any material alteration be made either party hereto may withdraw from this agreement on giving notice thereof to the other party before the Bill to confirm the agreement is read the third time in the Second House of Parliament.

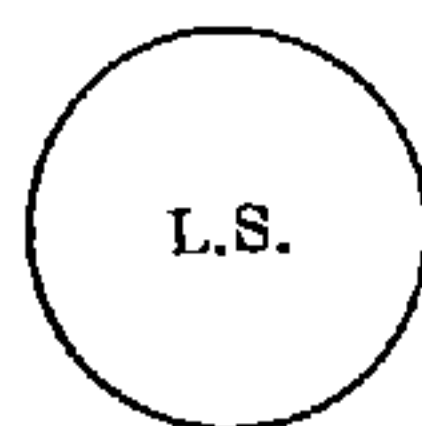
In witness whereof the Company have hereto caused their common seal to be affixed and the corporation have caused their corporate seal to be affixed the day and year first above written.

The common seal of the London and South Western
Railway Company was hereunto affixed in the
presence of



G. KNIGHT Secretary.

The corporate seal of the mayor aldermen and
burgesses of the county borough of Southampton
was hereunto affixed in the presence of



HENRY CAWTE Mayor.

R. R. LINTHORNE Town Clerk.

A.D. 1906.

SECOND SCHEDULE.

PART I.

SHARE AND LOAN CAPITAL OF THE CITY COMPANY.

	Authorised.		Issued and paid up.	Unissued.
	Stock and Shares.	Mortgages or Loan Capital less Amount in respect of Interest paid during Construction.		
Ordinary stock -	£ 540,000	£ s. d. —	£ 540,000	£ s. d. —
Loans - -	—	171,666 13 4	66,000	105,666 13 4
	540,000	171,666 13 4	606,000	105,666 13 4
	£711,666 13s. 4d.			

PART II.

SHARE AND LOAN CAPITAL OF THE LYME REGIS COMPANY.

	Authorised.		Issued and paid up.	Unissued.
	Stock and Shares.	Debenture Stock less Amount in respect of Interest paid during Construction.		
Ordinary stock - -	£ 55,000	£ —	£ 55,000	£ —
3½ per cent. preference stock 1903.	10,000	—	10,000	—
3½ per cent. preference stock 1904.	20,000	—	15,000	5,000
Debenture stock - -	—	20,000	14,000	6,000
	85,000	20,000	94,000	11,000
	£105,000			

THIRD SCHEDULE.

A.D. 1906.

PART I.

ACTS RELATING TO THE CITY COMPANY.

Waterloo and City Railway 1893.

PART II.

ORDERS AND CERTIFICATE RELATING TO THE LYME REGIS COMPANY.

Axminster and Lyme Regis Light Railway Order 1899.

Axminster and Lyme Regis Light Railway Certificate 1903.

Axminster and Lyme Regis Light Railway Order 1904.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.